

**STAFF MEETING MINUTES
LANCASTER COUNTY BOARD OF COMMISSIONERS
THURSDAY, NOVEMBER 17, 2022 AT 8:30 A.M.
COUNTY CITY BUILDING, 555 S. 10TH STREET
ROOM 112 - CHAMBERS**

Commissioners Present: Deb Schorr, Chair; Sean Flowerday and Roma Amundson

Commissioners Absent: Rick Vest and Christa Yoakum, Vice Chair

Others Present: David Derbin, Chief Administrative Officer; Kristy Bauer, Deputy Chief Administrative Officer; and Leslie Brestel, County Clerk's Office

Advanced public notice of the meeting was posted on the County-City Building bulletin board and the Lancaster County, Nebraska, website and emailed to the media on November 16, 2022. Notice was also published in the Lincoln Journal Star print and digital editions on November 14, 2022.

The Chair noted the location of the Open Meetings Act and opened the meeting at 8:33 a.m.

AGENDA ITEM

1. APPROVAL OF STAFF MEETING MINUTES FROM NOVEMBER 3, 2022

MOTION: Amundson moved and Flowerday seconded approval of the minutes. Flowerday, Amundson and Schorr voted yes. Vest and Yoakum were absent. Motion carried 3-0.

2. SHERIFF'S JOINT TRAINING FACILITY UPDATE – Ben Houchin, Chief Deputy County Sheriff

Houchin stated the Sheriff's Office is working with an architecture firm to design a law enforcement training facility that could be used by multiple agencies, including the Nebraska State Patrol (NSP), the Lincoln Police Department (LPD) and the University of Nebraska-Lincoln (UNL) Police Department. Today's discussion and presentation is for informational purposes and to allow time for the Board to ask questions.

Jeff Chadwick, Architect at Clark & Enersen, reviewed a presentation (Exhibit 1). The training facilities with the Omaha Police Department and in Georgetown, Texas were toured for inspiration. Houchin explained the benefits of the simulation area and tactical classrooms as they can be configured in various ways to create different training scenarios such as crime scenes and building clearing exercises. The trainees would be on one level while the training instructor would be on a catwalk above the simulation area, which allows for improved instructor observations and communication. Additionally, the facility could have a virtual car simulation area which would save on the use of actual vehicles.

Josh Sundine, Landscape Architect at Clark & Enersen, stated the building is estimated to be 16,000 square feet and the site is located at North 48th Street and Fletcher Avenue. Heather Keele, Architect at Clark & Enersen, discussed the various options in build out (see agenda packet). The project cost

was estimated to be \$14,383,185 with the construction costs estimated at \$11,506,548. Houchin said there is \$3,500,000 in Forfeited Assets funds. LPD has not been asked for funds at this time.

3. COUNTY BROADBAND RIGHT OF WAY – Pam Dingman, County Engineer, and Abby Eccher, Lincoln-Lancaster County Chief Information Officer

Alex Olson, Right-of-Way Manager, was also present for the discussion.

Dingman stated the rural broadband project did not have any costs included in its original estimate for rights-of-way acquisition. She displayed maps of applicable areas for requested rights-of-way purchases including Southwest 42nd Street, South 86th Street, South 148th Street, South 120th Street and Northwest 56th Street (Exhibit 2). The total estimate for acquiring rights-of-way for these areas is estimated at \$280,000.

Schorr asked how the overall broadband project would be impacted if a portion of the \$10,000,000 American Rescue Plan Act (ARPA) funds were used to purchase rights-of-way. Dingman answered she is hoping to bid the first quadrant of the project by Christmas. The estimated construction expenses for the first quadrant is \$2,500,000; however, due to increasing construction costs, the price could increase substantially. All of the quadrants are equally complex in the engineering design needs which is estimated at \$1,400,000. If costs for rights-of-way would need to be incorporated, she felt the only way was to reduce the scope of the broadband project.

The Board was not supportive of reducing the scope of the project.

Schorr inquired if there are other engineering projects that could be postponed to help cover the rights-of-way acquisition costs. Dingman replied all of the engineering projects need to move forward and be completed.

Dennis Meyer, Budget and Fiscal Officer, said there are \$3,400,000 in Keno funds available for the East Beltway project that could be used.

Flowerday asked about the \$1,400,000 engineering costs. Dingman stated the broadband project was allocated \$10,000,000 of which \$1,400,000 was for engineering services with JEO Consulting Group Inc (County Contract C-22-0427). Also, Engineering staff associated with the broadband project are tracking their time associated with this project and billing ARPA funds for that time. Schorr inquired as to costs associated with Engineering staff time. Dingman said she did not know the amount offhand.

Dingman cautioned the Board as the development of the project moves out to the corridor the cost will be split between the County and the City of Lincoln.

MOTION: Amundson moved and Flowerday seconded to move Keno funds to the rural broadband project. Amundson, Flowerday and Schorr voted yes. Vest and Yoakum were absent. Motion carried 3-0.

- 4. AMENDMENT TO COUNTY CONTRACT C-21-0724 WITH VIGILANT SOLUTIONS, LLC FOR MOBILE LICENSE PLATE READER SYSTEM AND SOFTWARE LICENSES. (SOLE SOURCE NO. SS-160. THE AMENDMENT RENEWS THE CONTRACT FOR AN ADDITIONAL ONE (1) YEAR TERM BEGINNING JANUARY 2, 2023 AND ENDS JANUARY 1, 2024. THE COST TO THE COUNTY IS NOT TO EXCEED \$25,000.)** – Ben Houchin, Chief Deputy County Sheriff; and John Ward, Deputy County Attorney

Terry Wagner, County Sheriff, stated the amendment is for a renewal contract with no changes from last year's contract. The facial recognition aspect of the Vigilant Solutions LLC product was excluded from last year's contract and continues to be excluded in the amendment.

Flowerday said his only concern with the contract is that Vigilant Solutions LLC can save and sell the data. Ward informed the Board that he reviewed the contract and Vigilant Solutions LLC cannot sell the data. Additionally, Vigilant Solutions LLC must follow Nebraska statutes and purge data in 180 days unless instructed otherwise by the Sheriff's Office.

MOTION: Flowerday moved approval of the amendment. Motion failed due to lack of a second.

Derbin noted the contract will be on the upcoming Tuesday meeting.

5. EXECUTIVE SESSION (PENDING AND POTENTIAL LITIGATION AND LEGAL ADVICE)

MOTION: Flowerday moved and Amundson seconded to enter Executive Session at 9:25 a.m. for the purposes of pending and potential litigation, receiving legal advice, and to protect the public interest.

The Chair said it has been moved and seconded that the Board enter Executive Session.

ROLL CALL: Flowerday, Amundson and Schorr voted yes. Vest and Yoakum were absent. Motion carried 3-0.

The Chair restated the purpose for the Board entering Executive Session.

MOTION: Amundson moved and Flowerday seconded to exit Executive Session at 9:54 a.m. Amundson, Flowerday and Schorr voted yes. Vest and Yoakum were absent. Motion carried 3-0.

4. MISCELLANEOUS ITEMS

A. COVID-19 UPDATE AND RESPONSE

Flowerday stated the COVID-19 risk dial moved from low yellow to mid-yellow.

B. GRASS FIRES UPDATE AND RESPONSE

No updates were given.

7. CHIEF ADMINISTRATIVE OFFICER REPORT

A. DISTRICT ENERGY CORPORATION (DEC) APPOINTMENT

Flowerday said Vest expressed a willingness to be a representative (see agenda packet).

MOTION: Flowerday moved and Amundson seconded to appoint Vest as a representative to the DEC. Flowerday, Amundson and Schorr voted yes. Vest and Yoakum were absent. Motion carried 3-0.

B. DECEMBER 15, 2022, STAFF MEETING (NACO ANNUAL CONFERENCE)

It was the consensus of the Board to cancel the December 15 staff meeting. Special staff meetings will be scheduled for December 13 and 20 immediately following the regular Tuesday meetings.

8. DEPUTY CHIEF ADMINISTRATIVE OFFICER REPORT

A. AUTHORIZATION FOR THE DEPUTY CHIEF ADMINISTRATIVE OFFICER TO FORMALLY ACCEPT THE FOLLOWING BERRYDUNN DELIVERABLE: ENVIRONMENTAL SCAN AND SWOT ANALYSIS

MOTION: Amundson moved and Flowerday seconded authorization for the Deputy Chief Administrative Officer to accept the environmental scan and SWOT analysis from BerryDunn. Amundson, Flowerday and Schorr voted yes. Vest and Yoakum were absent. Motion carried 3-0.

9. DISCUSSION OF BOARD MEMBER MEETINGS ATTENDED

A. Justice Council – Schorr

Schorr reported there was a presentation on the Community Corrections programs dashboard.

B. Reducing Racial & Ethnic Disparities Committee – Yoakum

No report given.

C. Public Building Commission – Amundson/Flowerday

Amundson stated there was no quorum. Discussion topics included an update on the City-County building garage remodel, a security update, the Human Resources office space design, and the upcoming high school mock trials.

D. Lincoln-Lancaster County Board of Health – Flowerday

Flowerday said he did not attend the meeting.

E. Lancaster County Mental Health Crisis Center Advisory Committee – Yoakum

No report given.

F. Visitors Promotion Committee – Amundson

Amundson stated she did not attend the meeting. Derbin said there were discussions on the new youth ballfields, a convention center study, and the new Lincoln Convention Visitors Bureau website.

G. MPO Technical Committee – Amundson

Amundson indicated she did not attend the meeting.

H. Parks and Recreation Advisory Board – Vest

No report given.

I. Realtors Association Government Affairs Committee – Amundson/Schorr

Amundson reported there was discussion on LB892 (Change provisions of the Nebraska Real Estate License Act), bark rangers in the dog parks to assist in identifying vicious dogs, water protection quality programs. Also, informal property hearings will be held beginning January 15 and virtual zoom inspections can be used.

J. Region V Services Committee Meeting – Yoakum

No report given.

K. Region V Systems Governing Board Meeting – Yoakum

No report given.

L. Youth Crisis Response Committee – Amundson

Amundson indicated she did not attend the meeting.

M. Lincoln's Second Water Supply– Flowerday

Flowerday stated the process of working through the criteria for a second water supply was discussed.

N. Lancaster County Ag Society – Amundson

Amundson indicated she did not attend the meeting.

O. Rural Fire Radio Communications Steering Committee– Flowerday

Flowerday said the addendum for a contract is being updated.

P. Other meetings attended since the last staff meeting

No reports were given.

10. SCHEDULE OF BOARD MEMBER MEETINGS

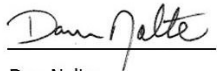
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11. EMERGENCY ITEMS

There were no emergency items.

12. ADJOURNMENT

MOTION: Amundson moved and Flowerday seconded to adjourn at 10:12 a.m. Flowerday, Amundson and Schorr voted yes. Yoakum and Vest were absent. Motion carried 3-0.



Dan Nolte
Lancaster County Clerk

